

26TRCV00615 26TRCV00615

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Case Number: 26TRCV00615 Hearing Date: July 28, 2026 Dept: B

Moving

Parties: Plaintiff Emilio Octavio Sanchez Cruz

Responding Party: None

Motion

for Leave to File First Amended Complaint

The Court considered the moving papers. No opposition was filed.

RULING

The motion is GRANTED.

BACKGROUND

On February 23, 2026, plaintiff Emilio Octavio Sanchez Cruz (self-represented) filed a complaint against Ogilvio Gabriel Castro.

On March 23, 2026, defendant (self-represented) filed an answer.

On June 8, 2026, plaintiff filed a substitution of attorney and is now represented.

LEGAL

AUTHORITY

CCP §

473(a)(1) provides, in relevant part:

“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.”

“This discretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit.” *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal. App. 3d 1045, 1047.

Under

CRC Rule 3.1324(a), a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

Under

CRC Rule 3.1324(b), a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier.

Even

if a good amendment is proposed in proper form, a long, unwarranted and unexcused delay in presenting it may be a good reason for denial. In most cases, the factors for timeliness are: (1) lack of diligence in discovering the facts or in offering the amendment after knowledge of them; and (2) the effect of the delay on the adverse party. If the party seeking the amendment has been

dilatory, and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. *Hirsa v. Superior Court* (1981) 118 Cal. App. 3d 486, 490. Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or added costs of preparation such as an increased burden of discovery. *Magpali v. Farmers Group, Inc.* (1996) 48 Cal. App. 4th 471, 486-488.

"[L]eave to amend should not be granted where, in all probability, amendment would be futile." *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal. App. 4th 680, 685 (citation omitted).

DISCUSSION

Plaintiff requests leave to file a first amended complaint to add causes of action for breach of contract, fraud, conversion, trespass to chattels, claim and delivery, unjust enrichment and restitution, and breach of covenant of good faith and fair dealing and to delete the causes of action alleged in the original complaint for "theft" and "extortion" filed when plaintiff was self-represented.

Plaintiff explains that the proposed FAC converts the Judicial Council form complaint to a pleading format. Plaintiff's counsel states in their declaration that plaintiff was pro per when he drafted and filed the complaint, and since the initial filing, plaintiff retained counsel, who has evaluated the case, undertaken further factual investigation and legal analysis, and determined additional causes of action to plead. Plaintiff argues that there is no prejudice to defendant as the parties have not engaged in discovery.

No opposition was filed.

The Court finds that plaintiff complied with CRC Rule 3.1324. Further, "[l]eave to amend is in general required to be liberally granted." *Kolani v. Gluska* (1998) 64 Cal. App. 4th 402, 412 (citation omitted).

The motion is GRANTED.

ORDER

The motion is GRANTED.

Plaintiff is ordered to give notice of the ruling.